

2015 WL 1296401 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Rahshad FRANCIS, Plaintiff,

v.

THE CITY OF NEW YORK, Police Officer Daniel Nunez, Shield No. 18750, Sergeant John Anzelino, Sergeant Menendez, Police Officer Robert Regnier, and Police Officers John Does #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department, Defendants.

No. 0021481-2015.
March 12, 2015.

Summons

[David M. Hazan](#), Esq., 11 Park Place, 10th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York March 11, 2015

VERIFIED COMPLAINT

Plaintiff, RAHSHAD FRANCIS, by his attorneys, Jacobs & Hazan, LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Section 1983](#), and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 24, 2012, at approximately 1:00 p.m., plaintiff, Rahshad Francis, while lawfully present in front of 4049 Edson Avenue, Bronx, New York, was subject to an unlawful detention, false arrest, false imprisonment, and malicious prosecution. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully detained plaintiff, confined plaintiff, and caused the unjustifiable arrest and malicious prosecution of plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Rahshad Francis is a legal resident of the United States and a resident of the County of Bronx, City and State of New York.
3. POLICE OFFICER DANIEL NUNEZ, Shield No. 18750, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER DANIEL NUNEZ, Shield No. 18750, is and was assigned to the 47th precinct.
5. POLICE OFFICER DANIEL NUNEZ, Shield No. 18750, is being sued in his individual capacity and official capacity.
6. SERGEANT JOHN ANZELINO is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. SERGEANT JOHN ANZELINO is and was assigned to the 47th precinct.
8. SERGEANT JOHN ANZELINO is being sued in his individual capacity and official capacity.
9. SERGEANT MENENDEZ is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. SERGEANT MENENDEZ is and was assigned to the 47th precinct.
11. SERGEANT MENENDEZ is being sued in his individual capacity and official capacity.
12. POLICE OFFICER ROBERT REGNIER is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. POLICE OFFICER ROBERT REGNIER is and was assigned to the 47th precinct.
14. POLICE OFFICER ROBERT REGNIER is being sued in his individual capacity and official capacity.
15. POLICE OFFICERS JOHN DOES #1-4 were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
16. POLICE OFFICERS JOHN DOES #1-4 are being sued in their individual and official capacities.
17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a

police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.

21. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On August 24, 2012, at approximately 1:00 p.m., plaintiff Rahshad Francis finished playing basketball in a park located close to his home and began to lawfully walk home from the park.

24. As plaintiff approached the vicinity of 4049 Edson Avenue, Bronx, New York he observed an individual whom he recognized from the neighborhood snatch a cell phone from the hand of a girl, and run away with the girl's cell phone in his hand.

25. Thereafter, plaintiff observed then the girl and her friends chase after the individual that snatched the girl's cell phone.

26. Plaintiff was not standing in a location where he could have possibly blocked the girl and her friends from chasing after the individual that snatched her cellular phone.

27. After observing the individual steal the girl's phone, plaintiff continued walking home to his home located at 4049 Edson Avenue, Bronx, New York, without incident.

28. Notably, plaintiff had no interaction with the girl who had her cell phone snatched, nor did he commit any crime whatsoever.

29. Upon reaching his home, plaintiff entered the building and after plaintiff was home for approximately five minutes, numerous NYPD officers, including but not limited to the defendant police officers arrived outside of plaintiff's home.

30. After plaintiff saw that there were numerous police officers outside of his home, plaintiff lawfully exited his home to speak with the defendant police officers.

31. Upon information and belief, the police officers outside of plaintiff's home were investigating the incident that plaintiff witnessed wherein the girl's cell phone was stolen, and the defendant police officers possessed a description of the individual who snatched the girl's cell phone.

32. Importantly, the description of the man that snatched the girl's cell phone did not match plaintiff in any way.

33. Additionally, the girl hat had her cell phone stolen affirmatively advised the police officers that plaintiff was not the individual who snatched her cell phone.

34. Notwithstanding, the girl's statement to the police exonerating plaintiff of wrongdoing, the police officers proceeded to conduct an unlawful search of plaintiff's person and the girl's phone was recovered from plaintiff by the police.

35. The defendant police officers unlawfully handcuffed and arrested plaintiff without probable cause, a warrant, or any other legal justification.

36. At the time of plaintiff's arrest the defendant police officers lacked any legal basis to place plaintiff under arrest, and did not possess any objective facts that would have led a reasonable police officer to believe that plaintiff committed a crime.

37. After plaintiff was handcuffed, the defendant police officers placed him into a police vehicle and transported him to the 47th precinct.

38. Upon arrival at the 47th precinct, plaintiff was photographed, fingerprinted, and placed into a holding cell.

39. While at the precinct, plaintiff spoke to the defendant police officers and explained to them he did not participate in the stealing of the cell phone and in fact was a witness to the crime and attempted to assist the defendant police officers in identifying and locating the perpetrator.

40. Nevertheless, the individually named police officer defendants falsely alleged in communications to the Bronx County District Attorney's Office that plaintiff stole the girl's cell phone even though the defendant police officers knew that plaintiff had nothing to do with the subject crime.

41. After many hours of being unlawfully detained at the 47th Precinct plaintiff was transported to Bronx County Central Booking where he spent many hours in holding cells that were maintained in filthy, inhumane conditions.

42. The Defendant Police Officers that did not physically partake in the arrest of plaintiff observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent his rights from being violated when he was unlawfully arrested and maliciously prosecuted.

43. Plaintiff was arraigned before a Judge at the Bronx County Criminal courthouse on or about August 25, 2012, at approximately 4:00 p.m., after he was unlawfully detained for approximately 24 hours, and a prosecution was unlawfully and maliciously initiated against plaintiff at arraignment when he was charged with crimes based upon the based upon fabricated information provided to the District Attorney's Office by defendants.

44. Plaintiff was released on his own recognizance at arraignment.

45. Thereafter, plaintiff was forced to appear in Court to address the fabricated criminal charges filed against him on approximately 10 occasions before all charges against plaintiff were dismissed on December 12, 2013.

46. The false arrest, false imprisonment, and malicious prosecution of plaintiff by defendants caused plaintiff to sustain severe psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs Fourth Amendment and Fourteenth Amendment Rights

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully search, and falsely arrested and imprisoned plaintiff, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's motor vehicle in violation of the Fourth Amendment.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Rahshad. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

58. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Malicious Prosecution

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned date.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 67 with the same force and effect as if fully set forth herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

72. In withholding/creating false evidence against plaintiff Rahshad Francis, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, plaintiff Rahshad Francis, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rahshad Francis demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York March 11, 2015

Respectfully Submitted:

By:

DAVID M. HAZAN, ESQ.

JACOBS & HAZAN, LLP

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